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File No: EXP202206541

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On September 26, 2022, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against LISMARTSA, S.L. (hereinafter the respondent). After notifying the initiation agreement and analyzing the allegations presented, on May 10, 2023, the proposed resolution was issued, which is transcribed below:

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File No: EXP202206541

PROPOSED RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following:

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on May 11, 2022. The complaint is directed against LISMARTSA, S.L. with NIF B78112679 (hereinafter, the respondent or LISMARTSA). The reasons on which the complaint is based are as follows:

The complainant presents the complaint because her company included her in a WhatsApp group without her consent. She states that she prohibited her company from communicating with her via phone or WhatsApp and that she only communicates through email. Along with the complaint, she provides several screenshots of a WhatsApp group called "Comisión Igualdad" consisting of 4 people, one of whom is the complainant.

The screenshots show that the group was created on 10/28/2021 by the holder of the line ***PHONE.1 and the complainant was added by a user who is not among her contacts. The complainant does not indicate the number of the affected telephone line that was included in the group.

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SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to LISMARTSA for analysis and to inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on June 14, 2022, as evidenced by the acknowledgment of receipt in the file.

On July 5, 2022, this Agency received a response letter dated July 4, 2022, indicating, in summary, the following:

1. LISMARTSA is a company with more than 50 employees and is required under current legislation to have an Equality Plan since March 7, 2022. In July 2021, efforts were initiated to hire a consulting firm specialized in advising for the development of said Plan.

1. The letter details the dates on which LISMARTSA contacted (...) requesting that they provide the names of the (...), without receiving a response.

2. On October 28, 2021, LISMARTSA created a WhatsApp group called "Comisión Igualdad" including (...). The respondent highlights that the objective of this was to expedite the designation of the (...).

3. In its letter, LISMARTSA emphasizes:

"Due to the company's insistence on obtaining a response by email regarding the need to form an Equality Negotiating Committee and being unable to do so, it resorted to telephone and WhatsApp

contact in order to meet the deadlines established for the company in the implementation and development of the Equality Plan.”

4. LISMARTSA states that the complainant has not exercised her rights of access, rectification, cancellation, and opposition before it.

THIRD: On August 11, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On September 26, 2022, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 6.1 of the GDPR, classified in Article 83.5 a) of the GDPR.

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FIFTH: Once the aforementioned initiation agreement was notified in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), the responding party submitted a written statement of allegations in which, in summary, it expressed that:

1. “The claimant had authorized this entity to process her data, a processing that included the possible transfer to ‘(...)’.

To this end, it submits, along with the statement of allegations, the ‘Consent for the collection of personal data’ dated January 8, 2020, signed by the claimant.

2. A chronology of how the events occurred, attaching some emails sent, which did not receive a response.

3. The claimant has not exercised the right to limit her personal data.

4. The responding party considers that in this case there are a number of mitigating factors: Regarding those established in Article 83 of the GDPR, it understands that the following apply:

- That of paragraph a), since “At no time has there been an intention to harm any of the individuals involved, having been a communication with limited scope with a small, determined, and known number of recipients (...). Additionally, the level of damages is estimated to be low, also considering that measures will be applied to mitigate them if this authority deems that there has been incorrect action.

Document No. 3 is attached, the ‘Constitution Act of (...) of Lismartsa’ where it is reflected that the members of the WhatsApp group, with (...). There has not been a high or significant number of affected individuals.”

- That of paragraph b), since “This party has acted at all times under the belief that it was complying with current regulations, both in terms of data protection and equality and labor law by having the authorization for the use of personal data, specifically for the transfer of her data and fulfilling an obligation established in labor legislation. At no time has there been any intention to harm the claimant.”

- That of paragraph c), because “All recipients have been requested to delete the claimant's phone number subject to this procedure, requesting confirmation of such deletion.” It attaches letters sent to two employees of said company, requesting the deletion of the claimant's phone number. It also indicates:

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“Additionally, this party has hired a consultancy specialized in compliance to obtain expert guidance

and advice on compliance matters, especially regarding the processing of personal data. In virtue of our commitment and the intention to remedy and mitigate possible adverse effects, four training sessions on compliance have been contracted in our current process of continuous improvement.” It accompanies diplomas certifying the completion of a course and highlights its content.

- That of paragraph e), since “As of the date of this writing, this entity has not had any sanctions regarding personal data protection.”
- That of paragraph f), since “This party has shown complete cooperation with this supervisory authority and assumes the total commitment that this will continue to be the case throughout the procedure. Among the contracted services, there is also advice regarding procedures before the supervisory authority, so they will accompany us in all measures that this authority deems necessary to apply. Additionally, a letter has been sent to the claimant to convey the entity's apologies, as well as our commitment that this will not happen again, informing of the measures taken to minimize risks in case this supervisory authority understands that actions have not been in accordance with the regulations (letter requesting the deletion of the phone number).”
- That of paragraph g), since “Only the phone number has been affected, without compromising personal data that would allow identity theft or credential theft. Special categories of data or particularly sensitive data have also not been affected.”

Regarding those established in Article 76.2 of the LOPDGDD, it understands that the following apply:

- That of paragraph a), since “It is a totally isolated and exceptional infringement, motivated by the need to train the works council for compliance with current legislation.”
- That of paragraph b), since “The company's activity is cleaning, so it does not primarily engage in the processing of personal data for the development of its economic activity.”
- That of paragraph c), because “No benefit has been obtained from the infringement.”
- That of paragraph d), since “Both the signing of the authorization and the continued absence of response to the emails to form the Equality Commission have affected this entity's conduct in creating the WhatsApp group.”
- That of paragraph f), because “No rights of any minor or vulnerable group or at risk of exclusion have been affected.”

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5.- That the sanction of warning would be more proportional to the specific case presented, “taking into account the measures adopted and the concurrent mitigating factors, as well as the delicate economic situation in which we find ourselves.”

SIXTH: On February 28, 2023, it was agreed to open a phase for the practice of evidence. It was also agreed to consider reproduced, for evidentiary purposes, the claim filed by A.A.A. and its documentation, the documents obtained and generated during the admission phase of the claim, which are part of the procedure.

***PROCEDURE.1.

It was also agreed to consider reproduced, for evidentiary purposes, the allegations to the initiation agreement of the referenced sanctioning procedure, presented by LISMARTSA, S.L., and the accompanying documentation.

The following evidentiary diligences are carried out:

1. In the same document dated February 28, 2023, in which the opening of the evidence phase is communicated, LISMARTSA, S.L. is requested to clarify:

- Whether the mobile phone number of Ms. A.A.A. that was included in the WhatsApp group called “Equality Commission” was a personal mobile phone number of that worker, or whether it was a corporate number provided by the company (in the latter case, documentary evidence must be provided).
- Whether the mobile phone number ***PHONE.1, which created the WhatsApp group called “Equality

Commission” on October 28, 2021, and subsequently added the mobile phone number of Ms. A.A.A. to that group, was a corporate mobile phone number.

2. On March 1, 2023, a response was received from the defendant party to the requested evidence, in which LISMARTSA states the following:

“

- The mobile phone number of Ms. A.A.A. that was included in the WhatsApp group was her personal number, just like the phone of the other members of the committee who were included in that group.

- The mobile phone number ***PHONE.1 is corporate; it was the one held by the previous Administrator of Lismartsa, and I currently have it, (...).”

SEVENTH: A list of documents in the procedure is attached as an annex.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

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FIRST: On October 28, 2021, LISMARTSA created, using the corporate mobile phone ***PHONE.1, a WhatsApp group called “Equality Commission.”

SECOND: Subsequently, using the same corporate mobile phone number, the aforementioned company added to that WhatsApp group the personal mobile phone number of Ms. A.A.A. and the personal mobile phone numbers of two other workers from that company.

The company states in its document dated October 19, 2022, in which it makes allegations to the initiation agreement, that the inclusion of (...) and the claimant in the WhatsApp group occurred on December 9, 2021.

THIRD: By adding the personal mobile phone numbers of the claimant and two others (...) to the WhatsApp group, it revealed such personal data to the other members of the group.

FOURTH: The documents provided by LISMARTSA show that the creation of the WhatsApp group aimed to expedite the designation of the (...).

Thus, in LISMARTSA's document of July 4, 2022, prepared in response to the transfer of the claim by this Agency, it is indicated: (the underlining is ours)

“On 28.10.2021, I formed a WhatsApp group called ‘Equality Commission’ including the three (...) from the number ***PHONE.1 that previously belonged to the former sole Administrator of LISMARTSA, using it myself B.B.B., (...). Ms. A.A.A. did not allow me to include her in the group because she had blocked me. Two days before creating that group, I informed her of the need to form the Commission, and since I had not informed (...), I created the group to expedite the management.”

In this same sense, in the documents dated October 13, 2022, addressed to the two individuals who were included, along with the claimant, in the WhatsApp group “Equality Commission,” it is highlighted (the underlining is ours).

“(…), they were included in a WhatsApp group called ‘Equality Commission’

(...)

to do so.

I included them without asking for their permission, (...)”

FIFTH: The communication that LISMARTSA intended to make to the claimant was finally delivered in person on December 30, 2021.

SIXTH: The claimant maintained communications with the management of her company via email.

This is evidenced by the emails dated May 20, 2018, May 21, 2019, and June 5, 2019, provided by the company, sent by the claimant, through a personal email account created on Gmail, to “LISMARTSA, S.L.”.

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The worker did not wish to receive communications from the management of her company via WhatsApp:

In this regard, in the complaint letter dated May 11, 2022, the complainant states:

“I have forbidden him to communicate with me by phone or WhatsApp.” (the underlining is ours).

Furthermore, in the letter dated July 4, 2022, which has been partially reproduced in the proven fact four, (...) it indicates: “he did not let the application include me in the group because he had me blocked.” (the underlining is ours).

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Moreover, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Change of Legal Qualification of the Facts Subject to the Complaint

Prior to analyzing the allegations presented, it is necessary to focus our attention on the outcome of the evidence-gathering phase, reflected in the proven facts.

During this evidentiary phase, it has been established that the mobile phone number (...), which created the WhatsApp group “Equality Commission” on October 28, 2021, and added the complainant's mobile phone number and the mobile phone numbers of two other LISMASTSA employees, was a corporate mobile phone number.

It has also been demonstrated that the complainant's mobile phone number and the mobile phone numbers of (...), which were included in that group, were their personal numbers.

Consequently, it is noted that the facts subject to the complaint, which are the subject of this sanctioning file, perfectly fit the typification contemplated in Articles 5.1 f) and 32 of the GDPR. For this reason, a change in the legal qualification of these facts is warranted concerning the legal qualification made in the initiation agreement.

Regarding whether it is appropriate to change the legal qualification of the facts subject to the complaint during the proposal phase, and the impact that such a change may have on the defense rights of the entity being complained against, it should be noted that nothing prevents this modification as long as, as is the case now, the facts on which the accusation is based remain unchanged.

The Constitutional Court (hereinafter TC) has indicated that “the essential content of the constitutional right to be informed of the accusation refers to the punishable facts attributed to the accused” (STC 95/1995). (The underlining is from the AEPD).

In contrast, and unlike what happens with the facts, the TC, in Judgment 145/1993, warns that the communication to the alleged infringer of the legal qualification and the potential sanction to be imposed does not integrate the essential content of the right to be informed of the accusation. So important is the knowledge of the constitutive facts of the administrative infringement that the TC has declared that the requirements of Article 24.2 of the CE are fundamentally satisfied with the mere communication of the alleged facts to enable defense against them (STC 2/1987 and 190/1987). In this line, the Supreme Court, in its Judgment of March 3, 2004, states that “the primary purpose of the initiation agreement is to inform about the alleged facts and not about the legal qualification, which will be handled by the resolution proposal.” (The underlining is ours).

III

Analysis of the Allegations Made

In response to the allegations presented by the entity being complained against, the following should be noted:

LISMARTSA presents a first block consisting of three allegations, which are set out below:

1. "The complainant had authorized this entity to process her data, a processing that included the possible transfer to '(...)".
2. A chronology of how the events occurred, attaching some emails sent, which did not receive a response.
3. The complainant has not exercised her right to limit her personal data.

Let us analyze the content of these allegations.

Regarding the first allegation:

"The complainant had authorized this entity to process her data, a processing that included the possible transfer to '(...)".

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In this case, following the change in legal qualification, an analysis of consent as a possible legitimizing cause for the processing is not being conducted.

However, once the documentation in the file has been analyzed, it is estimated that, as the complainant states in her complaint, the communications she maintained with the management of LISMARTSA occurred exclusively via email.

Regarding the chronology of events, the statement of allegations asserts the following:

"On 26.10.2021, an email was sent to (...) (the complainant) to form the (...), without receiving any response. On 4.11.2021, I sent an email to the (...) informing of the need to implement the Equality Plan, to which we also received no response.

(...)

In an email sent by the company dated 20/12/2021, the complainant was asked to determine the 'communication channel between (...) and the company' without receiving a response."

In the document from LISMARTSA dated July 4, 2022, prepared in response to the transfer of the complaint by this Agency, it was indicated: (the underlining is ours)

"On 28.10.2021, I formed a WhatsApp group called 'Equality Commission' including the three (...) from the phone number ***PHONE.1, which previously belonged to the former Sole Administrator of LISMARTSA, using it myself, B.B.B., as (...). Ms. A.A.A. did not allow me to include her in the application because she had me blocked. Two days before creating this group, I informed her of the need to form the Commission, and since I had not informed the other delegates, I created the group to expedite the management."

While it is understood that the (...) created this group with the purpose of expediting the designation of the members of the (...), it is not considered that the method used was the appropriate one. By adding the personal mobile phone numbers of three employees to the mentioned group, their personal data was automatically made available to the other members of the group.

It was also not the only possible way to communicate with the complainant, as this was ultimately done in person on December 30, 2021, as highlighted later in the document:

"On 30.12.2021, Ms. A.A.A. went to the LISMARTSA headquarters to receive anonymized documentation as (...) and signed the document provided by the company indicating that LISMARTSA would unilaterally proceed with the development of the Plan, and she added in her own handwriting that (...)."

The statement of allegations continues asserting:

"The complainant does not exercise the right to limit her personal data."

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Although the complainant had not previously exercised the right to limit her personal data, this circumstance did not justify the company creating a WhatsApp group and adding the complainant's personal mobile phone number to that group, thereby providing that personal data to the other members of the group.

Next, an analysis will be conducted of the allegations made by the responding party regarding various circumstances or criteria for the graduation of the proposed fine in this file, which are questioned by LISMARTSA, as they consider them mitigating factors that should have been taken into account by the AEPD.

- Article 83.2.a) of the GDPR: "the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected parties and the level of damage and harm they have suffered."

In this regard, the responding party states that "At no time has there been an intention to harm any of the individuals involved, having been a communication with limited scope with a small, specific, and known number of recipients (...). Additionally, the level of damage and harm is estimated as low, also considering that measures will be applied to mitigate them if this authority understands that there has been incorrect conduct.

(...)

There has not been a high or significant number of affected individuals."

Although the number of affected individuals is not high (three individuals), those three employees were affected by the actions of LISMARTSA (creation of a WhatsApp group and subsequent inclusion of their personal mobile phone numbers in it).

In the analyzed case, there was a loss of control over a piece of personal data (the personal mobile phone number), which was provided to the other members of the group. The aforementioned revelation of personal data is not diminished by the fact that, after receiving the initiation agreement dated September 26, 2022, the company wrote to two of those employees requesting that they delete the complainant's personal mobile phone number.

Recital 150 of the GDPR states that "(...) This Regulation must indicate the infringements as well as the maximum limits and the criteria for setting the corresponding administrative fines, which the competent supervisory authority must determine in each individual case taking into account all the circumstances involved, particularly the nature, gravity, and duration of the infringement and its consequences and the measures taken to ensure compliance with the obligations imposed by this Regulation and to prevent or mitigate the consequences of the infringement. (...)"

That is, the circumstances regulated in Article 83.2.a) of the GDPR are the starting point for determining the amount of the administrative fine, as, just as

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indicates the Guidelines 04/2022 of the European Data Protection Committee on the calculation of administrative fines under the GDPR, in its version of May 12, 2022, submitted for public consultation, "Depending on the circumstances of the case, the supervisory authority may consider that the above elements increase or decrease the perceived severity. If they are not of particular relevance, they may also be considered neutral.

Furthermore, it should be noted that the amounts of the fines established in the legal basis IX, as will be explained later, are clearly within the lower range of possible fine amounts.

- Article 83.2.b) of the GDPR: "the intent or negligence in the infringement," as the responding party points out, "This party has acted at all times under the belief that it was complying with the current regulations, both in terms of data protection and equality and labor law, having obtained authorization for the use of personal data, specifically for the transfer of their data and fulfilling an obligation established in labor legislation.

At no time has there been any intent to harm the claimant."

Nor can the concurrence of this circumstance be appreciated. In the event that it is determined that there has not been an intentional infringement, but rather a negligent act, it should be recalled that according to the Guidelines 04/2022 of the European Data Protection Committee on the calculation of administrative fines under the GDPR, in its version of May 12, 2022, submitted for public consultation, "negligence could, at best, be considered neutral."

- Article 83.2.c) of the GDPR: “any measures taken by the controller or processor to mitigate the damages suffered by the data subjects.”

“It has been requested from all recipients that they delete the claimant's phone number subject to this procedure, requesting confirmation of such deletion.

Attached as DOCUMENT NO. 4 is the communication sent to the recipients requesting the deletion of said phone number.

Additionally, this party has hired a consultancy specialized in compliance to obtain expert guidance and advice in the area of compliance, especially concerning the processing of personal data.

In virtue of our commitment and the intention to remedy and mitigate possible adverse effects, 4 training sessions on compliance have been contracted in our current process of continuous improvement.”

The circumstance of the alleged fine amount's graduation cannot be appreciated, as the creation of a WhatsApp group by LISMAARTSA has been evidenced, using a corporate mobile phone, and the inclusion in the

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the same as the mobile phone numbers of three workers from said company.

This circumstance implied a loss of control by these employees over one of their personal data, as well as it being provided to the other members of said group.

The measures subsequently adopted by the responding party in order to try to remedy the damages caused did not occur spontaneously, but rather after the receipt of the initiation agreement of the sanctioning file dated September 26, 2022.

Regarding the hiring of a consultancy specialized in regulatory compliance, and the four training sessions on the matter, while the measures are positively evaluated, it is considered that they are not aimed at alleviating the damages suffered by the claimant.

- Article 83.2.e) of the GDPR: “any previous infringement committed by the controller or the processor,” since the responding party states that “As of the date of this document, this entity has not had any sanctions regarding personal data protection.”

As of the date of this resolution proposal, LISMAARTSA has been sanctioned regarding personal data protection by this Agency. In any case, concerning the absence of prior infringement records, the Judgment of the National Court, dated May 5, 2021, rec. 1437/2020, provides us with the answer: “It considers, on the other hand, that the absence of a previous infringement should be appreciated as a mitigating factor. Well, Article 83.2 of the GDPR establishes that, among other things, the circumstance ‘e) any previous infringement committed by the controller or the processor’ must be taken into account for the imposition of the administrative fine. This is an aggravating circumstance; the fact that the prerequisite for its application does not occur means that it cannot be taken into consideration, but it does not imply or allow, as the claimant intends, its application as a mitigating factor.”

Furthermore, the Guidelines 04/2022 of the European Data Protection Board on the calculation of administrative fines under the GDPR, in their version of May 12, 2022, submitted for public consultation, state that “the absence of previous infringements cannot be considered a mitigating factor, as compliance with the GDPR is the norm. If there are no previous infringements, this factor can be considered neutral.”

- Article 83.2.f) of the GDPR: “the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement.”

The responding party considers that this mitigating circumstance applies because “This party has shown itself to be fully cooperative with this supervisory authority, and assumes the total commitment that this will continue to be the case throughout the entire procedure. Among the contracted services, there is also advice in the face of procedures.”

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before the supervisory authority, which will accompany us in all measures that this authority deems necessary to apply.

Additionally, a letter has been sent to the complainant to convey the entity's apologies, as well as our commitment that this will not happen again, informing them of the measures taken to minimize risks in the event that this supervisory authority believes that we have not acted in accordance with the regulations (letter requesting the deletion of the phone number).

Attached as DOCUMENT NO. 6 is the letter sent to the complainant.

Regarding the letter of apology to the complainant, this Agency reiterates that the rectification did not occur spontaneously, but rather after receiving the initiation agreement of this sanctioning procedure dated September 26, 2022.

On the other hand, it is necessary to consider the Guidelines 04/2022 of the European Data Protection Committee on the calculation of administrative fines under the GDPR, in its version of May 12, 2022, submitted for public consultation, which state that "the ordinary duty of cooperation must be considered mandatory and, therefore, should be regarded as neutral (and not a mitigating factor)."

- Article 83.2.g) of the GDPR: "The categories of personal data affected by the infringement," as the respondent indicates, "Only the phone number has been affected, without any personal data that would allow identity theft or credential theft being compromised. Special categories of data or particularly sensitive data have also not been affected."

In relation to this allegation, according to the content of the Judgment of the National Court, dated May 5, 2021, rec. 1437/2020, previously reproduced:

"It is an aggravating circumstance; the fact that the prerequisite for its application does not occur means that it cannot be taken into consideration, but it does not imply or allow, as the plaintiff intends, its application as a mitigating factor."

- Article 76.2.a) of the LOPDGDD: "The continued nature of the infringement."

LISMARTSA alleges: "This is a completely isolated and exceptional infringement, motivated by the need to train the (...) to comply with current legislation."

In this case, as was the case with the assertion regarding not having been previously sanctioned in matters of personal data protection, the alleged circumstance is one that, in its case, would increase the amount of the sanction; the fact that the prerequisite for its application does not occur means that it cannot be taken into consideration, but it does not imply or allow, as the respondent intends, its application as a circumstance that reduces the amount of the fine to be imposed.

- Article 76.2.b) of the LOPDGDD: "The link between the infringer's activity and the processing of personal data," as the respondent states,

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"The activity of the company is cleaning, therefore it does not have as its main activity the processing of personal data for the development of its economic activity." Certainly, the main activity of the defendant party is not related to the processing of personal data, but this should not imply that such circumstance is to be considered as a mitigating factor that reduces the amount of the fine to be imposed, but rather as a neutral circumstance, just as was the case with the absence of intent.

And we cannot forget that the protection of personal data is a fundamental right of individuals protected by Article 18.4 of the Constitution, so the regulatory framework regarding this matter is mandatory, regardless of whether the processing of data is the main activity of the company or not, since even these entities regularly carry out various personal data processing activities for the functioning of the entity (payroll management, human resources management, etc.).

- Article 76.2.c) of the LOPDGDD "The benefits obtained as a result of the commission of the

infringement.” In this regard, LISMARTSA argues: “No benefit has been obtained from the infringement.”

This criterion of graduation is established in the LOPDGDD in accordance with the provisions of Article 83.2.k) of the GDPR, according to which administrative fines will be imposed taking into account any “aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement,” understanding that avoiding a loss has the same nature for these purposes as obtaining benefits.

In accordance with the provisions of Article 83.1 of the GDPR: “Each supervisory authority shall ensure that the imposition of administrative fines in accordance with this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are in each individual case effective, proportionate, and dissuasive.” Consequently, admitting the absence of benefits as a mitigating factor is not only contrary to the factual premises contemplated in Article 76.2.c), but also contrary to what is established in Article 83.2.k) of the GDPR and to the principles indicated.

Thus, when assessing the absence of benefits as a circumstance that allows for a reduction in the amount of the fine to be imposed, the dissuasive effect of the fine would be nullified, to the extent that it diminishes the effect of the circumstances that effectively influence its quantification, providing the responsible party with a benefit that they have not earned. It would be an artificial reduction of the sanction that could lead to the understanding that infringing the regulation without obtaining benefits, financial or otherwise, will not produce a negative effect proportional to the severity of the infringing act.

Previously, we cited the Judgment of the National Court, dated May 5, 2021, which indicates: “On the other hand, it should be appreciated as a mitigating factor the non-commission of a previous infringement. Well, Article 83.2 of the GDPR establishes that account must be taken for the imposition of the administrative fine, among others, of the circumstance “e) any previous infringement committed by the responsible party or the...

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"data processor." This is an aggravating circumstance; the fact that the prerequisites for its application are not met means that it cannot be taken into consideration, but it does not imply or allow, as the claimant intends, its application as a mitigating factor." Consequently, the absence of benefits obtained from the infringement alleged by LISMARTSA cannot be considered a circumstance that would allow for a reduction in the amount of the fine to be imposed.

- Article 76.2.d) of the LOPDGDD: "The possibility that the behavior of the affected party may have induced the commission of the infringement."

In its written submissions, LISTMARSAs states:

"Both the signing of the authorization and the continued absence of response to the emails to form the Equality Commission have affected this entity's behavior in creating the WhatsApp group."

This Agency does not share this allegation. The fact that the claimant did not respond to the emails sent by the responding party did not justify the company using a corporate mobile phone to create a WhatsApp group to which it subsequently added the claimant's personal mobile phone number and the personal phone numbers of two other employees, thereby providing this personal data to the other members of the group.

- Article 76.2.f) of the LOPDGDD: "The impact on the rights of minors," since the responding party indicates, "No rights of any minor or vulnerable group at risk of exclusion have been affected."

Again, the absence of minors or individuals belonging to a vulnerable group or at risk of exclusion affected by the actions of the responding party does not imply that the circumstance of Article 76.2.f) of the LOPDGDD should be applied as a circumstance that reduces the amount of the fine to be imposed.

As we indicated regarding the circumstance related to the categories of affected data (Article 83.2.g) of the GDPR), the more categories of data that are affected or the more sensitive the data, the stricter the

sanction should be; when the processing carried out by the infringer affects the rights of minors, the amount of the fine should be higher.

The responding party concludes its written submissions regarding the initiation agreement by stating that a warning sanction would be more proportional to the specific case presented, "taking into account the measures adopted and the concurrent mitigating factors, as well as the delicate economic situation we find ourselves in."

Article 58.2 of the GDPR provides:

"2. Each supervisory authority shall have all of the following corrective powers:

(...)

b) to issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation;

(...)

i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case;"

For its part, Article 83.2 of the GDPR states:

"2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for those provided for in Article 58, paragraph 2, letters a) to h) and j))."

Furthermore, the provisions of Article 83.1 of the GDPR must be respected:

"1. Each supervisory authority shall ensure that the imposition of administrative fines in accordance with this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are effective, proportionate, and dissuasive in each individual case."

Based on the provisions of these articles and considering the particular circumstances of the analyzed case, the AEPD has decided to impose an administrative fine.

Finally, it should be noted that Recital 148 of the GDPR states:

"(148) In order to reinforce the application of the rules of this Regulation, any infringement of it must be punished with sanctions, including administrative fines, in addition to appropriate measures imposed by the supervisory authority under this Regulation, or in substitution of these. In the case of a minor infringement, or if the fine that would likely be imposed constitutes a disproportionate burden for a natural person, a warning may be imposed instead of a fine. However, special attention must be paid to the nature, gravity, and duration of the infringement, its intentional character, the measures taken to mitigate the damages suffered, the degree of responsibility or any relevant previous infringements, the manner in which the supervisory authority became aware of the infringement, compliance with measures ordered against the controller or processor, adherence to codes of conduct, and any other aggravating or mitigating circumstances. (...)"

From the content of this recital, it follows that in the case examined, a warning would not be appropriate, as it is not a minor infringement nor can it be appreciated that the fine constitutes a disproportionate burden for a natural person (the sanction is being imposed on a company).

Regarding the amount of the fines, it is necessary to refer again to the content of the legal basis IX.

Article 83.5.a) of the GDPR states that "Infringements of the following provisions shall be punished, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, of an amount..."

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equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent pursuant to Articles 5, 6, 7, and 9;"

Therefore, an administrative fine of 1,000 euros regarding the infringement of Article 5.1 f) of the GDPR is at the lower end of the possible sanctions.

For its part, Article 83.4 of the GDPR provides that "Infringements of the following provisions shall be subject to administrative fines of up to 10,000,000 EUR or, in the case of an undertaking, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor pursuant to Articles 8, 11, 25 to 39, 42, and 43; (...)"

Therefore, an administrative fine of 500 euros regarding the infringement of Article 32 of the GDPR is at the lower end of the possible sanctions.

In both cases, compliance with the provisions of Article 83.1 of the GDPR, previously reproduced, would be fulfilled.

However, the party being claimed considers that the sanction is not proportional "taking into account the measures adopted and the mitigating circumstances, as well as the delicate economic situation in which we find ourselves."

The measures adopted are typical of a data controller acting based on the principle of proactive responsibility (Article 5.2 GDPR); likewise, as analyzed, the circumstances for graduation that would allow for a reduction in the amount of the fine to be imposed do not exist.

On the other hand, "the delicate economic situation" in which the party being claimed states it finds itself has not been duly substantiated. The Guidelines 04/2022 of the European Data Protection Board on the calculation of administrative fines under the GDPR, in their version of May 12, 2022, submitted for public consultation, indicate that "As a particular derivative of the principle of proportionality, the supervisory authority may consider, in accordance with national law, to further reduce the fine on the basis of the principle of inability to pay. Any reduction of this type requires exceptional circumstances. In accordance with the European Commission's Guidelines on the method of setting fines, there must be objective evidence that the imposition of the fine would irreparably jeopardize the economic viability of the affected company. Furthermore, the risks must be analyzed in a specific social and economic context."

For all the above reasons, all allegations made by the party being claimed against the initiation agreement are dismissed.

IV

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Data Breach

Article 4, paragraph 12 of the GDPR broadly defines "personal data breach" (hereinafter security breach) as "a breach of security leading to the accidental or unlawful destruction, loss, alteration of, or unauthorized disclosure of, or access to personal data transmitted, stored, or otherwise processed."

In the present case, there is a personal data breach under the circumstances mentioned above, categorized as a confidentiality breach, as the personal mobile phone number of the complainant and the personal mobile phone numbers of two others (...) were added to a WhatsApp group called "Equality Commission," which had been previously created by the company using a corporate mobile phone. This circumstance has resulted in those mobile phone numbers being exposed and potentially known to the other members of the WhatsApp group.

V

Article 5.1.f) of the GDPR

Article 5.1.f) "Principles relating to processing" of the GDPR states:

"1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by means of appropriate technical or organizational measures ('integrity and confidentiality')."

In the present case, it is noted that the personal mobile phone numbers, both of the complainant and of two others (...), (personal data) were improperly disclosed to the other members of the WhatsApp group called "Equality Commission," which had been previously created by the company using a corporate mobile phone. This circumstance constitutes a violation of their confidentiality.

In this regard, we must recall the definition of personal data contained in Article 4 of the GDPR: "... 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person..."

Not to mention that, in Recital 26 of the same legal text, it is provided that "the principles of data protection should apply to all information concerning an identified or identifiable natural person."

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It is considered that the known facts could constitute an infringement attributable to the respondent, for violation of Article 5.1.f) of the GDPR.

VI

Typification and qualification of the infringement of Article 5.1.f) of the GDPR

If confirmed, the aforementioned infringement of Article 5.1.f) of the GDPR could imply the commission of one of the infringements typified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines," states:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

In this regard, the LOPDGDD, in its Article 71, "Infringements," establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 72 of the LOPDGDD, "Infringements considered very serious," indicates:

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations: those that involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

VII

Article 32 GDPR

Regarding the security of personal data, Article 32 of the GDPR, "Security of processing," establishes:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

a) the pseudonymization and encryption of personal data;

b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;

c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;

d) a process for regularly verifying, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to

the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data on instructions from the controller, unless required to do so by Union or Member State law.” In this regard, Recital 83 of the GDPR states that “(83) In order to maintain security and prevent processing from infringing the provisions of this Regulation, the controller or the processor must assess the inherent risks of processing and implement measures to mitigate them, such as encryption. These measures must ensure an adequate level of security, including confidentiality, taking into account the state of the art and the cost of their implementation in relation to the risks and the nature of the personal data that must be protected. When assessing the risk in relation to data security, the risks arising from the processing of personal data must be taken into account, such as the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data, which may particularly cause physical, material, or immaterial damage.” (the underlining is ours)

In the case examined, it cannot be appreciated that the data controller (LISMARTSA) has applied appropriate technical and organizational measures to ensure a level of security adequate to the risk concerning the personal data it processed (personal mobile phone numbers of three employees), especially regarding the ability to ensure the confidentiality of such data.

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This situation is particularly serious in the case of the claimant, given that she only wished to communicate with the management of her company via email and had blocked contact from (...).

The described behavior would constitute a violation of Article 32 of the GDPR.

VIII

Classification and qualification of the violation of Article 32 of the GDPR

If confirmed, the aforementioned violation of Article 32 of the GDPR could constitute one of the violations classified in Article 83.4 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be subject to administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; (...)"

In this regard, the LOPDGDD, in its Article 71 "Violations," establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute violations."

For the purposes of the statute of limitations, Article 73 "Violations considered serious" of the LOPDGDD indicates:

"Based on what is established in Article 83.4 of Regulation (EU) 2016/679, violations that constitute a substantial breach of the articles mentioned therein are considered serious and shall be subject to a two-year statute of limitations, particularly including the following:

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security appropriate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679."

IX

Proposals for sanctions

In order to determine the administrative fines to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the violations of this Regulation indicated in paragraphs 4, 5, and 6 is effective, proportionate, and dissuasive in each individual case.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented under Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, compliance with those measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42,
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement."

For its part, Article 76 "Sanctions and corrective measures" of the LOPDGDD states:

"1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679

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The following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the responsible party or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.

The evidence available and the criteria for scaling the amount of the fine set forth in Article 83.2 of the GDPR allow for the establishment of:

A fine of €1,000 (one thousand euros) for the infringement of Article 5.1 f) of the GDPR.

A fine of €500 (five hundred euros) for the infringement of Article 32 of the GDPR.

In light of the above, the following

PROPOSAL FOR RESOLUTION

is issued by the Director of the Spanish Agency for Data Protection to sanction LISMARTSA, S.L., with NIF B78112679,

- for an infringement of Article 5.1 f) of the GDPR, classified under Article 83.5 of the GDPR, a fine of €1,000 (one thousand euros).

- for an infringement of Article 32 of the GDPR, classified under Article 83.4 of the GDPR, a fine of €500 (five hundred euros).

Furthermore, in accordance with the provisions of Article 85.2 of the LPACAP, it is informed that it may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will entail a reduction of 20% of the amount thereof. With the application of this reduction, the sanction would be set at €1,200 (one thousand two hundred euros) and its payment will imply the termination of the procedure. The effectiveness of this reduction will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

In the event that it opts to proceed with the voluntary payment of the amount specified above, in accordance with the provisions of the aforementioned Article 85.2, it must make the payment by depositing it into the restricted account No. IBAN: ES00 0000 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason, for voluntary payment, for the reduction of the amount of the sanction. Furthermore, it must send the proof of payment to the General Subdirectorate of Inspection to proceed to close the file.

In virtue of the above, you are notified of all that precedes, and you are made aware of the procedure so that within TEN DAYS you may allege whatever you deem appropriate in your defense and present the documents and information you consider pertinent, in accordance with Article 89.2 of the LPACAP.
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ANNEX

11/05/2022 Complaint from A.A.A.

14/06/2022 Transfer of the complaint to LISMARTSA, S.L.

04/07/2022 Allegations from LISMARTSA, S.L.

11/08/2022 Communication to A.A.A.

27/09/2022 Notification of the agreement to initiate sanctioning proceedings to LISMARTSA, S.L.

28/09/2022 Information to A.A.A.

04/10/2022 Request for extension of deadline from LISMARTSA, S.L.

07/10/2022 Granting of deadline extension to LISMARTSA, S.L.

19/10/2022 Allegations from LISMARTSA, S.L.

28/02/2023 Notification of the opening of a period for evidence gathering to LISMARTSA, S.L.

01/03/2023 Response to request from LISMARTSA, S.L.

SECOND: On May 17, 2023, the respondent has proceeded to pay the sanction in the amount of €1,200 making use of the reduction provided for in the previously transcribed proposal for resolution.

THIRD: The payment made entails the renunciation of any action or appeal in the administrative route against the sanction, in relation to the facts referred to in the proposal for resolution.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the Procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), under the heading "Termination in Sanctioning Procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202206541, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to LISMARTSA, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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